PETITION - CLEAR AN ARREST THAT WAS NOT YOURS

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

EXPUNCTION WHERE THE PERSON WAS ARRESTED OR CHARGED DUE TO MISTAKEN IDENTITY, T.C.A. Sec. 40-32-106(A)(1)(H)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-106(a)(1)(H); T.C.A. Sec. 40-32-101; T.C.A. Sec. 40-32-106(a)(1); T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-110 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Mistaken identity is one of the enumerated non-conviction grounds in the reorganized Sec. 40-32-106(a)(1), and Public Chapter 268 of 2025 rewrote Sec. 40-32-101 as a chapter-wide definitions section that defines mistaken identity for the whole chapter. Relief runs on the same free petition vehicle as the other non-conviction grounds, with an added factual showing that the person was arrested or charged because of a case of mistaken identity. The pre-reorganization provision the controlling review cited, former Sec. 40-32-101(a)(1)(C)(i), also allowed the petitioner to provide evidence of the circumstances and request that the court order the expunction be expedited, on which finding the court was to order the TBI and any other expunging entity to act in an expedited manner. Whether that expedited-order duty survived the reorganization in the same terms was not established from an official source on 2026-08-06, and it is not asserted here.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - originating court] Which court handled the case, and in which county? A separate filing is needed in each county where you have a case.
.....
.....

[C2 - docket number] What is the docket or case number?
.....
.....

[C3 - offence and disposition] What was the charge, and exactly how did the case end?
.....
.....

[C4 - disposition date] On what date did the case end?
.....
.....

[C5 - state control number] What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

[C6 - other convictions] List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

[C7 - citizenship or clearance] Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

[C8 - mistaken identity account] In your own words, how did this arrest or charge come to be attached to your name when it was not you?
.....
.....

[C9 - identity evidence] What do you have that shows it was not you - where you were at the time, identification documents, fingerprints, or anything else?
.....
.....

[C10 - expedited needed] Is there a job, a licence or a housing application that makes speed matter here?
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec.

40-32-106(a)(1)(H); T.C.A. Sec. 40-32-101; T.C.A. Sec. 40-32-106(a)(1); T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-110.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

REQUEST FOR EXPEDITED CONSIDERATION - CLEAR AN ARREST THAT WAS NOT YOURS

TO: The county criminal, circuit or general sessions court having jurisdiction in the previous action
.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

REQUEST FOR EXPEDITED CONSIDERATION

I am asking for this matter to be taken up quickly, for the reason I give below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR AN ARREST THAT WAS NOT YOURS

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction where the person was arrested or charged due to mistaken identity, T.C.A. Sec. 40-32-106(a)(1)(H).

Mistaken identity is one of the enumerated non-conviction grounds in the reorganized Sec. 40-32-106(a)(1), and Public Chapter 268 of 2025 rewrote Sec. 40-32-101 as a chapter-wide definitions section that defines mistaken identity for the whole chapter. Relief runs on the same free petition vehicle as the other non-conviction grounds, with an added factual showing that the person was arrested or charged because of a case of mistaken identity. The pre-reorganization provision the controlling review cited, former Sec. 40-32-101(a)(1)(C)(i), also allowed the petitioner to provide evidence of the circumstances and request that the court order the expunction be expedited, on which finding the court was to order the TBI and any other expunging entity to act in an expedited manner. Whether that expedited-order duty survived the reorganization in the same terms was not established from an official source on 2026-08-06, and it is not asserted here.

WHERE IT GOES

The county criminal, circuit or general sessions court having jurisdiction in the previous action
Confirmed on 2026-08-06 by direct inspection of both Tennessee AOC form indices: the self-help forms page publishes only divorce and order-of-protection forms, and the full forms-and-publications inventory covers appellate, divorce, general sessions civil, mediation, non-IV-D child support, order of protection, parenting plan and trial court forms, plus licensing forms. No expunction form appears in either. This is a negative finding established by inspection of the authoritative index, not by failure to search.
Venue: Statewide statute with originating-court venue. The petition goes to the court having jurisdiction in the previous action - the county criminal, circuit or general sessions court where the case originated. A person with cases in several counties files separately in each. There is no statewide participant form, so what varies locally is the clerk's own paperwork: the AOC directs filers to check with the court clerk because separate forms may be required for multiple charges.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: None. Mistaken identity is one of the Sec. 40-32-106(a)(1) grounds, and those records must be removed and destroyed without cost to the person. Fee waiver as recorded: Not applicable - no fee is charged.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general in the ordinary course.

WHAT THE RECORD SAYS YOU MUST KNOW

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- Any dispute about whether the participant is in fact the person arrested or charged. Proving mistaken identity is a factual showing, and a contested one is outside self-help.
- The participant cannot document the circumstances at all.

THE PAGES IN THIS SET

- tn_mistaken_identity-petition-1: the composed petition, on this route's own statutory ground (Clear an arrest that was not yours)
- tn_mistaken_identity-expedited-request-2: the written request asking for the matter to be taken up quickly (Clear an arrest that was not yours)